

the resulting trust be a *chattel interest*, carved out of real estate, it will devolve, on the death of the heir, on the personal representative of the heir (*b*); and if the resulting interest be an estate *pur autre vie*, it is the better opinion that it also goes to the heir's personal representative (*c*). But under the late Wills Act, 1 Vict. c. 26, s. 25, if the will contain a residuary devise, and there is no evidence of a contrary intention on the face of the will, the void accumulations will go to the residuary devisee.

15. **In personal estate.**—In *personal* estate, if there be a residuary legatee, the excess beyond the allowed period of accumulation will fall into the residue (*d*), and where the residue is settled on A. for life, remainder to B., will form part of the capital (*e*).

16. **Residue.**—If the subject of the accumulation be the income of the residue itself, the void accumulation will, according to the nature of the residue, *i.e.*, *real or personal*, result to the heir-at-law or to the next of kin (*f*).

17. **Charge.**—If an estate be devised *subject* to a void direction to accumulate in such terms that the void [*93] accumulation, if valid, would have *been construed a mere *charge*, it will, like any other charge which fails (*a*), sink for the benefit of the devisee (*b*).

18. **Exceptions from the Act.**—Lastly, the statute provides, that “nothing in the Act contained shall extend to any provision for *payment of debts* (*c*) of any grantor, settlor,

(*b*) *Sewell v. Denny*, 10 Beav. 315.

(*c*) *Barrett v. Buck*, 12 Jur. 771; see *Halford v. Stains*, 16 Sim. 488, *contra*.

(*d*) *Haley v. Bannister*, 4 Mad. 275; *O'Neill v. Lucas*, 2 Keen, 313; *Webb v. Webb*, 2 Beav. 493; *Attorney-General v. Poulden*, 3 Hare, 555; *Jones v. Maggs*, 9 Hare, 605; *Re Drakeley's Trust*, 19 Beav. 395.

(*e*) *Crawley v. Crawley*, 7 Sim. 427.

(*f*) *M'Donald v. Bryce*, 2 Keen, 276; *Eyre v. Marsden*, 2 Keen, 564; *Pride v. Fooks*, 2 Beav. 430; *Elborne*

v. Goode, 14 Sim. 165; *Bourne v. Buckton*, 2 Sim. N. S. 91; *Edwards v. Tuck*, 3 De G. M. & G. 40; *Mathews v. Keble*, 4 L. R. Eq. 467; 3 L. R. Ch. App. 691; *Simmons v. Pitt*, 8 L. R. Ch. App. 978; *Talbot v. Jevers*, 20 L. R. Eq. 255. [*Weatherall v. Thornburgh*, 8 Ch. D. 261.]

(*a*) See *Tucker v. Kayess*, 4 K. & J. 339.

(*b*) *Re Clulow's Trust*, 1 J. & H. 639; *Combe v. Hughes*, 34 Beav. 121; 2 De G. J. & S. 657.

(*c*) *Bateman v. Hotchkin*, 10 Beav. 426.